

Penal Policy – Law 401. D
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The Copper and the Gavel: Contrasting Symbols of Power and Authority

This tapestry, based on the button blanket design of my people, the Haisla, depicts the devastating effects of segregation and isolation on prisoners within Canada's penal system.

In my community and all along the west coast, the Copper Shield has been a symbol of wealth, power and authority. It has also been a symbol of peace. The Copper was used at our traditional ceremonies during feasting times, and in accordance with our Haisla Nuyems, our system of traditions; our governance and laws. Coppers were also used in shaming rituals in which our old people would "break" the coppers into pieces.

The gavel is a powerful symbol of authority within the colonial Judiciary in Canada. To bring down the gavel means to enforce a Judge's order. It symbolizes the power of the court. It symbolizes the judgement and sentence of an offender to incarceration.

My symbolic interpretation in this tapestry is as follows:

The bentwood box was used our people to store food, dried fish and grease. It is also used to store precious things; button blankets, dance regalia and dance head dresses. I have used the bentwood box to symbolize the use of segregation and being held in confinement. It also represents our people, who are precious to us, even when they are incarcerated.

The copper on the front of the bentwood box represents the whole person, the precious, strong and proud person, before he/she go into segregation. The broken pieces of copper coming out the the box represent what the colonial system, the gavel, does to prisoners while in segregation; it breaks and shames their spirit and soul.

The window and bars represent the isolation cell of Gary Weaver, a prisoner discussed in Professor Michael Jackson's book, *Justice Behind the Walls*. Gary Weaver experienced time in segregation from the time he was 16 years old. He is now 47. How he has survived being in isolation and segregation, on and off, over the span of 30 years, no one will never know. One small gesture by a lawyer, an advocate and "legal assistant," gave Gary hope, a small blue flower, picked outside the jail grounds and given to Gary Weaver as a symbol of care and hope.

The small vase of blue “forget-me-nots” represents people in the legal system who fight tirelessly and advocate for prisoners when no one else seems to care. The flowers represent hope for prisoners and give them the strength and fortitude to make it through segregation. The bars on the jail window are sewn with white pearl buttons which represent the “white” jail and judicial system.

The sun rays, shining down through the window, represent freedom – just beyond the grasp of any prisoner. An eagle feather, a braid of sweet grass and a small pouch containing devil's club root symbolize the need for restorative justice programs within prisons. Devil's club root – “oax-swa-lee” in our Haisla language, is used/burned by our people to ward off bad spirits and thoughts. In the context of this tapestry, I have used it with the purpose of warding off negative thoughts of self-doubt, worthlessness and suicide while enduring the isolation of segregation.

Rehabilitation and Re-integration

The stated purpose of incarceration, for those who are convicted of crimes, is to rehabilitate an offender so that he or she can be re-integrated back into society.

The use of segregation, solitary confinement and deprivation of any meaningful human contact is one of the most serious actions Corrections Canada can impose on an inmate. It has been shown to have adverse effects on prisoners, especially those who suffer from mental health and developmental issues.

In Michael Jackson's *Prisoners of Isolation*, the case of Jack McCaan was discussed and analyzed. Jack McCaan was held in isolation for an approximate total of 1,471 days. Needless to say, this had a profound psychological effect on him. While serving time in solitary confinement, the “Hole”, Jack McCaan wrote a series of poems. I have selected some stanzas from the following poem which stood out to me.

“My Home is Hell”

My home is hell in once small cell

That no man wants to own,

For here I spend my life condemned

A man the world disowns.

So I the damned, within walls crammed

Lie in my man-made grave.

A man all men condemned for sin

But no man strives to save.

Each lonely dawn that night spawns

I stand and face the wall

In bitterness and loneliness

I await the whistle's call

The right to sin, but rise again,

A free man, not a slave

To find a friend and at the end,

Escape a pauper's grave.

Within these walls that never fall,

The damned all come to know,

The row of cells-the special hell,

Called Solitary Row

(Prisoners of Isolation – Solitary Confinement in Canada, Michael Jackson 1983)

The effect of segregation and isolation on prisoners has had a completely devastating impact on their mental health. This has impacted their ability to survive while in “the Hole”, and, if they make it through segregation, their ability to successfully re-integrate upon their release into main stream society.

The call for independent oversight on the use of segregation has been on-going since the 1980’s. Report after report, review after review, and recommendation after recommendation has been made for more than thirty years in Canada with little change. Corrections Canada has largely ignored these reports and recommendations, always under the guise of “prison safety and security”.

In 2016, the news of 23-year-old Adam Capay, an Oji-Cree man, from the Lac Seul Nation near Sioux Lookout Ontario, made headlines after it was learned that he had been held in segregation for 1,591 days - almost 4 ½ years. No checks or balances. No documented justification was provided or recorded by the Thunder Bay District Jail to justify Adam Capay’s continued incarceration in segregation. He is a young indigenous man who the prison system does not value. They may as well have locked him up and thrown away the key.

Paul Dubè, Ombudsman for Ontario, has just released his report “Out of Oversight, Out of Mind” on the investigation into how the Ministry of Community Safety and Correctional Services Ontario handles segregation. Media have called the report “scathing” and it is. Mr. Dubè asserts that the time for further studies, reports and consultation is over. It is time for action and for independent oversight.

Among the 34 recommendations, #31 is crucial: “The Ministry of Community Safety and Correctional Services should carefully consider my Office’s previous recommendations regarding the creation and procedures of an independent panel to review all segregation placements...”

Maybe now, long overdue change and accountability will occur and the use of segregation will finally be used as a last resort only, not as an administrative option.

What will it take for fundamental changes to be made in the area of prisoner rights? Political will? A judiciary that reflects our diverse society? More Indigenous lawyers and judges to continue the work and advocacy of previous legal trailblazers?

Clare Culhane, a Canadian prisoners’ rights activist, suggested that we can’t change prisons without changing society. In her book, *“No longer Barred from Prison: Social Justice in Canada,”* she wrote: “We can only proceed, individually and collectively, to make whatever improvements are possible in our respective areas of concern, sustained by the hope that others are doing the same.”

As soon-to-be new lawyers, our role is to take that torch of hope, given to Gary Weaver in the form of a wildflower, and to carry on, making the fair and just changes needed.